

BEFORE THE IOWA BOARD OF BEHAVIORAL SCIENCE

IN THE MATTER OF:	)	CASE NUMBER: 04-004
	)	
SUZANNE CYR,	)	SETTLEMENT AGREEMENT
	)	AND FINAL ORDER
Respondent.	)	

COME NOW the Iowa Board of Behavioral Science ("Board") and Suzanne Cyr ("Respondent"), and pursuant to Iowa Code sections 17A.10 and 272C.3(4), enter into the following Settlement Agreement and Final Order of the contested case currently on file against the Respondent:

1. The Board originally licensed Respondent to practice as a marital and family therapist in the state of Iowa on July 7, 2000, and Respondent holds license number 00208.
2. The Board filed a Notice of Hearing and Statement of Matters Asserted against the Respondent on May 12, 2006. The case was continued at the request of both parties. A contested case hearing in this matter is scheduled for May 9, 2008.
3. The Board's investigative file contains records which allege that Respondent refused to provide a patient's records upon request and that Respondent failed to respond to inquiries from the Board regarding the status of the records request. Respondent contends that records maintained by her former employer would reflect that she provided the patient's records to the requesting party upon receipt of the necessary release and would reflect her notice of communications from the Board and responses thereto. Respondent and the Board have each requested the records of

Respondent's former employer in order to confirm or repudiate the accuracy of the allegations and have been advised by Respondent's former employer that the employer has been unable to locate said records. The Respondent does not admit the allegations contained in the Notice of Hearing and Statement of Matters Asserted and enters into this Settlement Agreement and Final Order for the sole purpose of resolving this matter to avoid the burden, expense, delay, and uncertainties of a contested case hearing.

4. The Board has jurisdiction over the parties and subject matter of the Notice of Hearing and Statement of Charges.

5. Execution of this Settlement Agreement and Final Order constitutes the resolution of this contested case. Respondent has a right to a hearing on the charges, but waives Respondent's right to hearing and all attendant rights, including the right to appeal, by freely and voluntarily agreeing to this Settlement Agreement and Final Order. Once entered, this Order shall have the force and effect of a disciplinary order entered following contested case hearing.

6. Respondent is freely and voluntarily entering into this Settlement Agreement and Final Order. Respondent agrees that the State's counsel may present this agreement to the Board and may have ex parte communication with the Board while presenting it.

7. This agreement is subject to approval of the Board. If the Board approves this agreement, it becomes the final disposition of this matter. If the Board fails to approve this agreement, it shall be of no force or effect to either party.

8. This agreement shall be part of the Respondent's permanent record and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

9. In the event Respondent violates or fails to comply with any of the terms of this Settlement Agreement and Final Order, the Board may initiate appropriate action to revoke or suspend Respondent's license or to impose other licensee discipline in accordance with Iowa Code section 272C.3(2)(a).

10. This Settlement Agreement and Final Order is a public record available for inspection and copying in accordance with the requirements of Iowa Code chapters 22 and 272C. The Notice of Hearing and Statement of Matters Asserted are also public records available for inspection and copying in accordance with the requirements of Iowa Code chapters 17A, 22 and 272C.

11. The Board's approval of this Settlement Agreement and Final Order shall constitute a FINAL ORDER of the Board.

IT IS THEREFORE ORDERED:

12. Respondent is hereby **CITED** for failing to timely respond to the Board's inquiries regarding a request for patient records as required by 645 IAC 33.2(1)"a" and American Association for Marriage and Family Therapy Code of Ethics 2.4 and 3.2. Respondent is hereby **WARNED** that future violations may result in further disciplinary action, including suspension or revocation of her license to practice marital and family therapy in the state of Iowa.

This settlement agreement and final order is approved by the board on May 13, 2008.